



महाराष्ट्र MAHARASHTRA



2022 INDIA

ZS 806760



श्रीमती. एस. वि. मसुरकर

This LEAVE AND LICENSE AGREEMENT is made and executed at Mumbai on this 30th day of May 2022;

BETWEEN

LICENSOR:

Mr. Mohammad Atique Mohammad Siddique Motiwala (PAN-ALDPM0464E)

AND

LICENSEE:

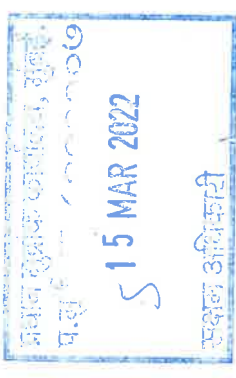
SAPPHIRE FOODS INDIA LIMITED, (CIN L55204MH2009PLC197005)





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ZS 806761



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SAPPHIRE FOODS INDIA LIMITED, (CIN L55204MH2009PLC197005)

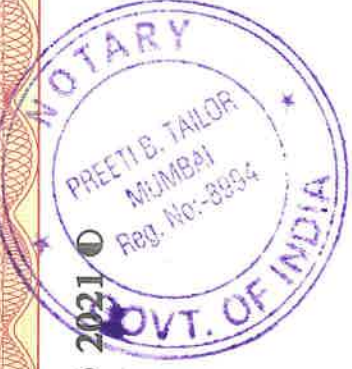




महाराष्ट्र MAHARASHTRA

2021

ZS 806762



श्रीमती. एस. वि. मसुकर

This LEAVE AND LICENSE AGREEMENT is made and executed at Mumbai on this 23rd day of May, 2022;

BETWEEN

LICENSOR:

Mr. Mohammad Atique Mohammad Siddique Motiwala (PAN-ALDPM0464E)

AND

LICENSEE:

SAPPHIRE FOODS INDIA LIMITED, (CIN L55204MH2009PLC197005)





महाराष्ट्र MAHARASHTRA

© 2021

ZS 806763



श्रीमती. एस. वि. मसुरकर

This LEAVE AND LICENSE AGREEMENT is made and executed at may on this 30th day of

BETWEEN

LICENSOR:

Mr. Mohammad Atique Mohammad Siddique Motiwala (PAN-ALDPM0464E)

AND

LICENSEE:

SAPPHIRE FOODS INDIA LIMITED, (CIN L55204MH2009PLC197005)





महाराष्ट्र MAHARASHTRA

ZS 806759



श्रीमती. एस. वि. मसुकर

LEAVE AND LICENSE AGREEMENT

This LEAVE AND LICENSE AGREEMENT is made and executed at Day on this 30th day of

BETWEEN

LICENSOR:

Mr. Mohammad Atique Mohammad Siddique Motiwala (PAN-ALDPM0464E), S/o Mr. Mohammad Siddique Motiwala, Age 40 yrs an individual having his registered office address at B/1/2, Motiwala Trade Centre, New Samarth Nagar, Nirala Bazaar, Aurangabad - 431001, herein referred to as the "LICENSOR" (includes its successors, Administrators and permitted assigns).

LICENSEE:

SAPPHIRE FOODS INDIA LIMITED, (CIN L55204MH2009PLC197005), an existing Public Limited Company duly incorporated and registered in India under the Companies Act, 2013, having its registered Office at A-702, 7th Floor, Prism Tower, Mindspace, Off Link Road, Goregaon (West), Mumbai 400062, having PAN AANCS5595A, through its Authorized Signatory Mr. Deepak Taluja, herein referred to as the "LICENSEE" (includes its successors, associates, affiliates, subsidiaries, group companies and permitted assigns).

The LICENSOR and LICENSEE are hereby individually referred to as the "Party" and collectively referred to as the "Parties".

Licensor



Licensor

RECITALS :

The Licensor is the Owner and is absolutely seized & possessed of or otherwise well and sufficiently entitled to the Licensed Premises defined herein below and has provided the latest Title Search report from his advocate in support thereof, copy of which is Annexed herewith and marked as Annexure 'F'.

The Licensee is, inter alia, engaged into Licensee's Business defined herein below. Licensee is looking out for a commercial premises to be able to carry on the Licensee's Business therefrom. Licensee should be able to carry out Licensee's Business from such premises for a fixed tenure, is the sole object and spirit behind Licensee entering into this agreement and that forms the essence hereof.

The Licensor has agreed to grant Licensed Premises to the Licensee and the Licensee, relying upon Licensor's representations and considering them to be true, has agreed to take the Licensed Premises on License basis, on certain terms and consideration mentioned herein.

DEFINITIONS:

"EFFECTIVE DATE" :

The Date of signing of this agreement from when the agreement takes effect, without having regard to the commencement of Term agreed herein and/or the License Fee Commencement Date for that matter.

"LICENSEE'S BUSINESS":

the business of running and operating Quick Service Restaurants including carrying out any sales and/or marketing activities, food outlet and dine-in services, being the most important part, to serve vegetarian and non-vegetarian food under the Brand Name and style as mentioned in 'Annexure – A'.

"LICENSE FEE-FREE FIT OUT PERIOD" :

It is the number of Days mentioned in 'Annexure – A', commencing from the date of handover of physical possession of the Licensed premises, by the Licensor to the Licensee, for carrying out the Fit-out work or commencement of business of Licensee from the Licensed Premises, whichever is earlier. No License Fee shall be payable during this Period.

"THE LICENSE" :

It is the permission and entitlement granted by Licensor to the Licensee to access, occupy and use the Licensed Premises for conducting Licensee's Business, together with its employees and persons authorized by it including access to its customers, at all times, along with the entrance, staircase, lifts, landings and other passages as also of water tanks and water connections to the Licensed Premises and access to terrace for installation of Satellite Dish, Sify Tower, all necessary equipment for wireless linking as may be required by the Licensee.

"LICENSED PREMISES" :

The commercial premises admeasuring 2250 Sq.Ft (Carpet Area) located at Ground floor, Motiwala Avenue, Unit No.2, CTS No.14536/3, Opp. Dhooth Dairy, Beside Barista, Amarpreet Signal, Jalna Road, Aurangabad – 431001 more particularly described in "**the Schedule**" herein below.

"LICENSE FEE COMMENCEMENT DATE" :

It is the Day/Date immediately succeeding the last day/date of License Fee-Free Fit out Period, subject to completion of Licensor's deliverables, pending, if any. License Fee Commencement Date is also the "Date of Commencement of Term of this Agreement".

"TOTAL NET SALES" :

Shall for the purpose of this Agreement shall be equivalent to gross sale minus GST or any other equivalent tax, promotional discounts, commission on deliveries, staff meals in any particular month. It is further clarified that Total Net Sales shall not include any other income or inter branch transfers/sale of raw material/scrap or capital items, if applicable.

"MATERIAL BREACH" :

Licensee defaulting upon payment of License Fee consecutively for two months and not curing the same during third month, despite having received a cure notice from the Licensor, shall be treated as Material Breach.



Licensor



Licensee



"FORCE MAJEURE" :

Shall mean any event or circumstances, beyond the reasonable control of Party/Parties herein and which could not have been foreseen and/or prevented by exercise of reasonable care and caution, including but not limiting to the following:

- A. war or armed conflicts, revolution, riots, and/or any act of terrorism or any other law and order situation;
- B. change in government policy or any material change in law, the issuance of any order that may be issued by a competent authority;
- C. labour unrest and strike activity undertaken by labors, manufacturers, suppliers and/or transporters;
- D. any other act of God or effect of the natural calamities including but not limiting to fire & other allied perils, earthquakes, storm, cyclone and/ or floods;
- E. acts of government which including but not limited to orders of the Governments/Adjudicating Authorities/Enforcement Agencies, national or state emergency;
- F. epidemic, pandemic, effluence, pollution, leakage, lockdown and/or Curfew etc.

Provided to the same is not attributable to the Licensee.

REPRESENTATIONS & WARRANTIES

The Licensor has made the following Representations, Warranties and Declarations to the Licensee, that;

A. The Licensor is absolutely seized & possessed of or otherwise well and sufficiently entitled and is legally competent to grant License for the Licensed Premises to the Licensee for the purpose and intent mentioned under this agreement.

- B. The Licensed Premises is free from any Charges, Mortgage, Hypothecation, Lien and Encumbrances and the same is not pending any Lis-Pendence, Claims, or acquisition proceedings in any manner.
- C. There is no Winding up, Liquidation, Insolvency or Bankruptcy proceedings or any other court proceedings, pending against Licensed Premises and against the Licensor.
- D. That it has neither assigned nor created any third-party rights or interest in the Licensed Premises in any manner whatsoever.
- E. That the Licensed premises are built as single premises therefore no amalgamation permission is required.
- F. That, if any of the above representations are subsequently found to be untrue, Licensor warrants that he/she shall be liable and responsible to the consequences apart from Licensee having all remedies available, including but not limited to execution of fresh agreement or addendum, damages and/or the right to terminate the Leave & License Agreement.
- G. The Licensor further represents and confirms that Licensed Premises is allowed to be used for commercial purpose including running a restaurant and the Licensor owns and undertakes the responsibility if anything adverse with respect to the said representation is found at a later date.

GENERAL and COMMERCIAL TERMS AGREED BETWEEN THE PARTIES

1. Grant of The License:

The Licensor hereby grants "the License" to the Licensee.

2. License Fee:

Licensee hereby agrees to pay to the Licensor, the License Fee as mentioned in '**Annexure – A**'. Subject to TDS as applicable, the License Fee shall be payable on or before 10th day of each English Calendar month through RTGS/Cheque, in advance, provided the invoice is received by the Licensee by 3rd of every month.

3. License Tenure or Term :

Term of the License shall be as mentioned under '**Annexure – A**'. Licensee shall be entitled to renew the agreement for further Term subject to service of 60 days advance notice in writing communicating its intention to renew, to the Licensor whereby the Licensee shall acquire first right of refusal in this regard. Any such subsequent agreement shall adjust date of escalation in License fees to ensure that License fees is effectively escalated at the end of every 3 (Three) years.

4. Termination :

Licensor can Terminate this agreement only in the event of "Material Breach". Licensee can terminate this agreement at anytime during the Term, by serving an advance 3 months notice of Termination in writing to the Licensor.

5. Security Deposit :

The security deposit refers to the amount paid by Licensee to the Licensor as a guarantee against the performance of its obligations under this agreement which does not bear any interest. The Security Deposit amount and the schedule of payment is mentioned in '**Annexure – A**' the receipt of which is hereby accepted and acknowledged by the Licensor. Security Deposit also includes any other subsequent deposits paid towards any enhancements during the tenure of this agreement and shall be refunded by the Licensor to the Licensee post adjusting all dues payable under this agreement.

Licensor

Licensee

[Signature]



simultaneously on the Licensee handing over to the Licensor the quiet, vacant and peaceful possession of the Licensed Premises on termination or sooner determination as per the provisions contained herein.

Licensor's failure to refund the Security Deposit as mentioned above, shall, apart from making the Licensor liable to pay an interest to the Licensee at the rate of 18% p.a. on the Security Deposit due from the date of default until the date of actual, full and final repayment thereof, also entitle Licensee and/or any person or entity nominated by Licensee, in its own discretion, to continue occupying the Licensed Premises and carry on its lawful business therefrom without payment of license fee or any other charges whatsoever payable for the use of the Licensed Premises. Such occupation, use and enjoyment of the Licensed Premises shall not be treated as illegal/unauthorized trespass, until & unless the full and final refund of the Security Deposit is made by the Licensor to the Licensee.

6. Licensor's Deliverables before Commencement of Fit-out by Licensee :

The Licensor is under obligation to complete its deliverables, as per Feasibility Report annexed herewith and marked as '**Annexure - C**' and '**Annexure-E**', by the mutually agreed date of Handover of physical possession of the Licensed Premises to the Licensee. Licensor's failure to perform this obligation shall entitle Licensee two days of License Fee Free Operation Period for each day of delay beyond the agreed date of handover and shall commence from the date of commencement of License Fee, as mentioned herein, postponing it accordingly. The Licensee shall also have right to terminate this Agreement with a right to claim penalty and liquidated damages, in case the delay in completion of Licensor's deliverables continues for a period of 1 (one) month or more.

In such an event, Licensee shall be entitled, at its sole discretion, to perform and complete the delayed deliverables of Licensor in the interest of parties and shall adjust the total cost of performing Licensor Deliverables from the License Fee payable to Licensor under this Agreement.

7. Licensee's Fit-out Work :

Licensee without adversely affecting the structure of the Licensed Premises, shall endeavor to carry out/install the civil works, fixtures, furniture, fittings, equipment, apparatus and other works ("Fit-Out") in the Licensed Premises as the Licensee may deem expedient and necessary in its absolute discretion to make the Licensed Premises fit for carrying out Licensee's Business therefrom. The Licensor shall thus on the execution of this Agreement allow the Licensee access to the Licensed premises to carry out the fit out works.

8. Goods and Services Tax:

The applicable GST on the License Fee shall be paid by the Licensee. In due compliance of its obligations, the Licensor shall remit the GST so charged (if any) from the Licensee, subject to a valid invoice / debit note, to the appropriate government authority and file GST returns as prescribed, within the statutory timelines, and subject to timely payment made by the Licensee, mentioning all appropriate and relevant information on the GSTN platform, which enables the Licensee to claim timely credit of GST in the appropriate GST registration. In the event the credit of GST is not granted or denied under the applicable Laws for non-payment of taxes charged or on account of any non-compliance (including but not limited to non-filing of information, non-filing of returns, non-payment of appropriate GST to appropriate government / incorrect submission of information on the GSTN Platform), then the Licensor shall rectify the said non-compliances/errors. In the event, the non-compliance/ error is not rectified in a timely manner, then Licensor shall have to pay the amount of GST charged along with the interest, penalty and/or any other cost. Details of GST are mentioned in '**ANNEXURE - A**'.

9. Licensor's Covenants:

Licensor Covenants to the Licensee that;

- A. It shall carry out any/all structural repairs, leakages and seepages in the Licensed Premises, at its own costs and expenses, within 7 days from the date of receipt of notice from the Licensee.
- B. Save and except the loan with SBI Bank (NOC attached as Annexure '____'), Licensor shall not create any charge or encumbrance of any nature on the Licensed premises, without obtaining the prior written consent of the Licensee.
- C. It records its "**No Objection**" as per '**Annexure - D**' to enable the Licensee to secure all requisite permissions / licenses, connections that it may be required for Licensee's Business and further undertakes to co-operate Licensee in this regard, as and when required.
- D. It shall provide space and carry out technical scope of work at no extra cost, for the services mentioned in '**Annexure - E**'.
- E. Licensor at the cost of Licensee shall facilitate Licensee in obtaining the various licenses (including but not limited to FSSAI, Fire NOC, Shops & Establishment etc.) including requisite No Objection

Licensor



Licensee




Certificates (NOC) from the local authorities and neighboring properties for establishment and operation of the Restaurant at the Licensed Premises including for all the utilities to be installed. It is further clarified that the miscellaneous cost incurred by the Licensee in this regard due to non-availability of property documents at Licensor's end shall be reimbursed by the Licensor to the Licensee to its full extent.

F. If for any reason, the Licensee has to pay or pays any amount in respect of the Licensed Premises which is payable by Licensor, (in law or otherwise) the Licensee shall be entitled to deduct and or set off all such payments against the monthly license fee payable to the Licensor as provided herein.

G. It shall maintain common areas including cleaning of swage line from Licensed Premises to main line.

H. It undertakes to carry out all major repairs and maintenance, water/drain leakage in the building, transformer malfunctioning, major electrical breakdown, structural repairs at its own costs and expenses within a period of 48 hours of the Licensee intimating the same to the Licensor.

I. It shall, at its own cost, install a separate meter for computation of electricity and water by the Licensee at the Licensed Premises. Licensor undertakes to get Licensee the required load of electricity as mentioned herein in this agreement within 30 days of possession of the Licensed Premises by the Licensee for carrying fitout. In the event the Licensor fails to get the required electricity load for the Licensed premises and Licensee has to use the DG, the Licensee will be incurring the actual cost based on the respective state electricity board rate, the excess amount shall be reimbursed/borne by the Licensor.

J. The Licensor undertakes to provide the latest property tax paid receipts to Licensee year on year, which is a must for the Licensee to procure and/or renew its yearly licenses. Licensor's failure to provide the latest property tax paid receipts, on demand, shall entitle Licensee to pay the applicable Property Tax for the Licensed Premises on Licensor's behalf and shall further entitle Licensee to deduct the equivalent amount from the License Fees payable during the immediate succeeding month/s.

K. In the event the Licensee requires additional power load at any time during the term of the License hereby granted, the Licensor shall, at the cost of Licensee shall acquire and provide to the Licensee, additional power supply from the concerned Electricity Company/Authority. The Licensor shall complete all the formalities excluding payment of enhanced deposit etc. for enhancement of power supply, within a period of two weeks from the date of such request being made by the Licensee.

L. Amalgamation or de-amalgamation / Addition Alteration/ Change of Use (if applicable) shall be done by the Licensor within 30 (thirty) days of receiving of layout by the Licensor from the Licensee, which can be provided by the Licensee only post feasibility.

A. The Licensor undertakes to resolve, at its own costs and efforts, immediately and amicably, each and every complaint, dispute, objection and/or concern raised, in any manner, by the authorities, concerning the non-availability of any requisite documents and shall ensure at all times that the operation of Restaurant of the Licensee is not hindered in any manner due to non-availability of the same.

B. The Licensor agrees, accepts and undertakes that, in the event, during the subsistence of this Agreement, any action and/or proceeding is adopted by the authority against the Licensor and/or Licensee, on account of non-availability of any requisite documents, which leads to temporary closure/shutdown of the business operation of the Licensee from the Licensed Premises, the Licensee shall not be liable to pay the License Fee for the period the store is closed and/or Restaurant operation of the Licensee is hindered at & from the Licensed Premises. Further, if the Licensee is ready to commence its business operation from the Licensed Premises but due to non-availability of requisite documents (from Licensor) is not able to procure business licenses and commencement of business operation gets delayed the Licensee shall also be entitled to the two days of Lease Rent Free Operation Period for each day of delay beyond the date of completion of fit out period and shall commence from the date of commencement of Lease Rent, as mentioned herein, postponing it accordingly. Further, the Licensor also undertakes and confirms that in such an event of closure of and/or hindrance to the restaurant operation of Licensee, the Licensee shall also be entitled to the rent-free operation period equivalent to the number of days the Restaurant operation remained closed and/or hindered. Further, if the closure/shut down of the Licensed Premises continues for more than 3 (three) month, the Licensee shall have a right to forthwith terminate this Agreement. In such an event, the Licensor shall forthwith refund the Security Deposit without any demur or desist. It is further clarified, and the Licensor hereto agree and understand that on such termination the Licensee shall also be entitled to the compensation towards the cost of fit outs/furniture-fixtures/movable assets amounting to Rs 1,00,00,000/- (Rupees One Crore only) in the nature of the liquidated damages, subject to 10% depreciation every year.

M. Notwithstanding anything contained anywhere else in this Agreement and without prejudice to any rights of the Licensee under this Agreement, Licensor confirms and undertakes that no License Fee shall be payable by Licensee to Licensor if any misrepresentation found made herein by the Licensor at any point of time endangering the Licensee's business operations.



10. Licensee's Covenants:

Licensee Covenants to the Licensor that;

- A. It shall not conduct its business in any unlawful manner and for any unlawful purpose
- B. It shall not bring or store in the Licensed Premises, any combustible material or other dangerous things, except cooking gas cylinder, which may jeopardize the safety of the Licensed Premises
- C. It shall not sell pork meat and alcohol from the Licensed Premises
- D. It shall carry out all works including but not limited to interior work of the nature of tiling work, furniture work, ducting work at its own cost and expenses. Further, the Licensee ~~shall~~ be entitled to take the material which is fixed/installed by the Licensee, while vacating the Licensed Premises.
- E. It Shall do all civil changes, save and except structural changes, as required for installing of its machinery at the Licensed Premises, at its own costs and expenses.
- F. It shall, without any additional costs/ charges payable to the Licensor be entitled to display sign boards, neon signs, hoardings bearing it's trade name, trade mark, logo etc. inside and outside the Licensed Premises and also to display the name boards/nameplates of the Licensee at the entrance of the Licensed Premises at its own costs and expense. It is hereby clarified that any Permission/approval, Taxes or any other amounts payable in respect of display of signboards to any Authority shall be borne and payable by the Licensee alone.

11. Sale of Licensed Premises:

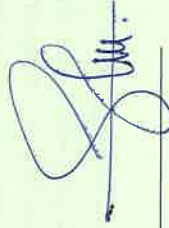
- A. Parties agree, understand and confirm that in the event of Sale, Assignment or Transfer of the Licensed Premises, the Purchaser/ Transferee shall become the new Licensor in all respects and such Sale, Assignment or Transfer shall be subject to this Leave and License agreement and further it shall not in any way alter, restrict, limit or curtail the rights of the Licensee granted under this License.
- B. Licensor shall take all reasonable steps to ensure that Licensee's interests are protected in relation to the Licensed Premises, in the event of Sale, Assignment or Transfer. The Licensee and the Purchaser/Transferee (New Licensor) shall decide and enter into the necessary documentation for further continuation of Licensed Premises, at the cost of the Purchaser/Transferee.
- C. The Licensor further undertakes to refund or transfer the security deposit paid by the Licensee to the Licensor under this Agreement to the Licensee or such Purchaser/Transferee (New Licensor) and submit the acknowledgement of receipt of the security deposit by Purchaser/Transferee to the Licensee
- D. The Licensee shall also have the option to exit from the leave and license agreement in case of Licensed Premises being sold/assigned or Transferred by the Licensor to such a transferee/purchaser whom the Licensee is not willing to continue the Leave and License Agreement.

12. Forthwith Termination:

Apart from Licensee having entitled to suspend the License Fee, the Licensee shall have the discretionary right to terminate this Agreement with immediate effect, forthwith in any of the following circumstances:

- A. any action taken by the competent enforcement authorities against the Licensed Premises or part of the building / Mall / project of the Licensor under zoning regulations, construction rules or land usage laws.
- B. Litigation filed, stay or attachment order passed by competent authority/Court or third party right/claim/demand made on the Licensed Premises or any part of the Mall/building/project for whatsoever reason or because defective title, encumbrances etc. except as disclosed to the Licensee.
- C. Licensor commits any act, deed, matter or thing during the License Tenure, whereby the rights of the Licensee shall be jeopardized, affected or rendered void;
- D. In case of Licensee's right to quiet and peaceful enjoyment of the Licensed premises or any other rights which are provided in this Leave and License are encumbered, restricted or affected by reasons attributable to the negligent act or omission of the Licensor;
- E. Suppression of material records/facts, misrepresentation by the Licensor of its representations and warranties hereunder.
- F. In case of partial / total destruction of the Licensed Premises due to any act or negligence of the Licensor.
- G. If the business purpose of the licensee is frustrated by virtue of incurring losses in the business for any reason whatsoever or otherwise and/or the business projections are not met with to a reasonable extent.

Licensor



Licensee



13. Indemnity:

The Licensor indemnifies and keeps indemnified the Licensee its directors, employees and agents against all costs, claims, losses, business losses, damages etc arising out of defect in the title of the Licensor or in relation to any non-adherence and/or non-compliance to any of the statutory requirements pertaining to acquiring the ownership over the Licensed Premises, interference from the Licensor or any third person claiming through the Licensor, towards peaceful, unhindered, exclusive and lawful occupation and use of Licensed Premises till the end of the Term (and any renewals thereof) as herein agreed.

In case any such interference or interference due to any statutory non-compliance, non-procurement of permits related to the Licensed Premises including various licenses, any injunction order/stay order from the Court/Tribunal/Award by the Arbitrator, any litigation against the Licensor which is currently unknown to the Licensee but subsequently in due course comes to the knowledge of the Licensee, any default on the part of the Licensor including any misrepresentation made by it for which Licensee is prevented from using the Licensed Premises, the Licensees obligation to pay the License Fee shall be suspended with immediate effect, until the aforesaid interference is permanently and successfully removed by the Licensor, within the time period stipulated under Applicable Law or as stated by the Licensee in its written notice to Licensor. In case of failure on part of Licensor to remove all aforesaid interference as stated above, the Licensee shall be entitled to terminate this Agreement with immediate effect and recover the losses, damages including business loss for the remaining Licensed Tenure from the Licensor.

14. Force Majeure and its Consequences:

Due to the result of Force Majeure event;

- A. The Licensed Premises is non-operational partly or fully or cannot be accessed partly or fully by the employees of Licensee and/or customers for a certain period as may be notified/specified or otherwise;
- B. If the Licensee's ability to use/enjoy/occupy the Licensed Premises fully or partially or whether temporarily or otherwise is impacted or hampered, in any manner whatsoever, vitiating the intent and/or purpose, as stated under the agreement, for which the Licensed Premises is taken on Leave & License.

In the event of happening of any one or more event as stated under A and B above, then the Licensee shall give intimation to the Licensor of occurrence of such Force Majeure event within 15 days thereof and notwithstanding anything contained to the contrary in this agreement, the License Fee payable to the Licensor (including all other occupancy charges but not limiting to CAM, HVAC, water charges, electricity charges etc.) shall, notwithstanding anything mentioned to the contrary elsewhere in this agreement, cumulatively stand modified as 6.50% of Net sales from the date of occurrence of Force Majeure event until the business/sales is reinstated to the levels of pre-occurrence of Force Majeure event. However, it shall be at the discretion of the Licensee to terminate this Agreement forthwith, through available mode of written communication (notwithstanding the provision pertaining to Service of Notice mentioned anywhere else in the agreement), in case of occurrence of Force Majeure event.

Further, if any part of the Licensed Premises can be used and occupied, then the Licensee may, at its sole option, continue using such part of the Licensed Premises and in such an event, the Licensee may relinquish/surrender remaining part of the Licensed Premises. The Licensee shall be liable to pay proportionate amount of License Fee and other occupancy charges whereas the proportionate Security Deposit amount also shall immediately be refunded to the Licensee by the Licensor.

15. Miscellaneous or General Clauses:

A) Assignment and Amendment:

The Licensee shall be entitled to assign / transfer the benefit of this License Agreement to (i) affiliate group company or (ii) holding companies, subsidiary companies, group companies, or other affiliates/entities, legally appointed franchisees which are managed and controlled by the Licensee or Joint Venture Companies to which the Licensee is a party, the use and occupation of the Premises or any portion thereof and/or may assign to it the benefit of this License Agreement. The Licensee shall notify the Licensor in writing for one (1) month in advance about its intention to execute the assignment. The Licensor shall not be entitled to sell / mortgage / charge or encumber the Premises or a part thereof to any third party unless such third-party purchaser / mortgagee / charge confirms in writing that they would comply with the terms and conditions of this License Agreement.

Licensor

Licensee

B) Severability:

Any provision of this Leave and License which is held to be invalid or unenforceable for any reason shall be ineffective to the extent of such invalidity or unenforceability only, without affecting in any way the remaining provisions hereof.

C) Non-Waiver

Any delay tolerated or indulgence shown by the Licensor or Licensee in enforcing the terms and conditions or provisions herein mentioned, or any forbearance or giving of time by them to the other respectively, shall not be treated as a waiver of any breach, violation, non-observance, non-performance or non-compliance, nor shall the same in any manner prejudice the rights and interests of the Licensor or Licensee.

D) Notices:

Any notice and other communications provided for in this Leave and License shall be in writing and shall be delivered by email or RPAD or Designated Courier marking to and at the address mentioned in 'Annexure – A'.

E) Amendment:

This Leave and License shall not be amended or otherwise altered except pursuant to an instrument in writing signed by each of the Parties hereto. This Agreement supersedes all documents and writings (if any) executed/exchanged between the parties hereto in respect of the subject matter hereof.

F) Non-Competition:

The Licensor shall not during the subsistence of this Leave and License, without the prior consent of Licensee enter into any transaction with or in any way be connected with any other Retailer/consortium of Retailers competing with the Licensee.

G) Non-Disclosure:

The Licensor shall always keep confidential and not, at any time during or after the term of this License, disclose, any of the Licensee's business information/sales report shared with the Licensor, with any third party, without the Licensee's specific prior written consent in this regard. Licensee brand names & logo, trademark or its style etc. shall not be used by the Licensor except with the prior consent in writing from the Licensee. The strict Confidentiality obligation under this clause remains in force even after termination of this Agreement.

H) Stamp Duty and Legal Charges:

All expenses relating to stamp-duty and registration charges shall be borne and paid by both the Parties equally. The Licensor shall register this Leave and License as required under law and the Licensee shall, at the request of the Licensor, present itself at the office of the Sub-Registrar of Assurances for the purpose of admitting execution of this Leave and License Agreement.

I) Leave and License Agreement Copies:

This Leave and License agreement has been executed in duplicate and the parties hereto agree that the original registered Leave and License shall be retained by the Licensee and the counterpart thereof shall be kept by the Licensor.

J) Governing Law and Jurisdiction:

This Agreement shall be governed by and construed and enforced in accordance with the laws of India and the Courts in Aurangabad, Maharashtra shall have exclusive jurisdiction to entertain any and/or all proceedings under this agreement.



Licensor



Licensee

"Schedule of Licensed Premises"

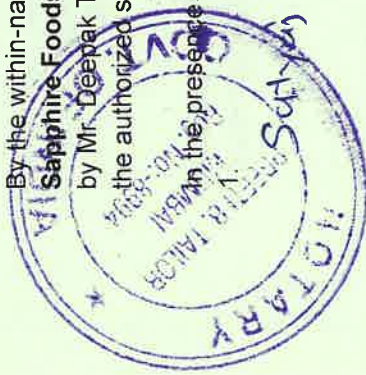
ALL THAT PIECE AND PARCEL with CTS No. 14536/3 in the building named 'Motiwala Avenue' containing the commercial premises Unit No.2 at Ground Floor (admeasuring 2250 sq. ft. Carpet area), situated Opp. Dhooth Dairy, Beside Barista, Amarpreet Signal, Jalna Road, Aurangabad-431001, shown in the Plan marked and annexed herewith as '**Annexure - B**'.

IN WITNESS WHEREOF, the parties hereto have hereunto set and subscribed their respective hands to these presents on the day and the year first hereinabove written.

SIGNED AND DELIVERED)
by the within-named "**the LICENSOR**")
Mr. Mohammad Atique Mohammad Siddique Motiwala)



SIGNED, SEALED AND DELIVERED)
By the within-named '**The LICENSEE**')
Sapphire Foods India Ltd.)
by Mr. Deepak Taluja,)
the authorized signatory/POA holder)



in the presence of

Satyajit Suresh Lalsare 



ATTESTED BY


PREETI B. TAILOR
ADVOCATE & NOTARY (GOVT. OF INDIA)
B-5, MILAN APTS., RAMCHANDRA LANE
MALAD (WEST), MUMBAI - 400 064.

1 8 AUG 2022

THE NOTARY PUBLIC DOES NOT ASSUME ANY RESPONSIBILITY/LIABILITY FOR 'EQUALITY' OF ANY CONTENTS OF DOCUMENTS/WITNESSES/IDENTIFIERS AND FULFILMENT OF ANY 'LEGAL REQUIREMENTS'



Licensor



Licensee

“ANNEXURE - A”

1. **BRAND NAME & STYLE :**
KFC

2. **LICENSE FEE-FREE FIT OUT PERIOD:**
75 Days or start of Lessee's business operations, whichever is earlier.

3. **LICENSE FEE, ESCALATION & OTHER EXPENSES:**
Licensee agrees to pay (all inclusive) to the Licensor;

- a) **Fixed License Fee :** Rs. 2,25,000/- (Rupees Two lakh Twenty Five Thousand and only per month)
- b) **Escalation on Minimum Guarantee:** 15 percent every 3 (three) years.
- c) **Other Pre-Operational Costs**
The Licensee agrees to pay to the Licensor an amount of Rs.5,00,000/- (Rupees five lakh only) towards installation of New Transformer at the Licensed Premises. Licensor agrees to install the New Transformer before the store becomes operational. Such cost is required for operating the store in the intended manner and for the purposes of continuous supply of electricity at the Licensed Premises. This amount shall be paid by the Licensee on execution of this Agreement. The same would be re-imbursed to the licensor on receipt of a debit note/invoice for the above amount.

d) **CAM Charges:** Not applicable. If applicable in future, Licensor shall bear the same.

e) **Utility Consumption Charges:** On Licensee, at actuals, based on respective meter reading, from the date of possession until the vacating the Licensed Premises.

f) **Taxes & Charges:** Licensor alone shall be liable to pay the Municipal Taxes, Property Taxes, cess & charges (including society maintenance charges) levied by various authorities and/or bodies from time to time, with regard to the Licensed Premises.

g) **Goods & Services Tax Registration Details** are as follows:

GST No. 27ALDPM0464E1ZD
Registration Address: CTS NO. 14536/3, OPP. DUDH DAIRY, JALNA ROAD, Aurangabad,
Maharashtra, 431001

4. **LICENSE TENURE or TERM:**

5 (Five) years commencing from the date of commencement of License Fee.

5. **REFUNDABLE SECURITY DEPOSIT AMOUNT AND PAYMENT SCHEDULE:**

Sr. No.	Milestone	Amount (in Rupees)
1	Upon Execution of LOI	Rs.4,50,000/-
2	Upon Execution of Agreement	Rs.6,75,000/-
3	Upon Completion of Licensor's Deliverables	Rs.2,25,000/-
	Total	Rs. 13,50,000/-

6. **INSURANCE:**

The Licensor shall obtain and keep valid insurance, including third party insurance in respect of the Licensed Premises including the amenities and equipment provided by it, if any.

7. **NOTICES:**

In the case of notice to the Licensor;

Marked to : Mr. Mohammad Atique Mohammad Siddique Motiwala

Address: B1/2, Motiwala Trade Centre, New Samarth Nagar, Nirala Bazaar, Aurangabad - 431001 Email Id:

In the case of notice to the Licensee;

Marked to : Mr. Puneet Bhatia

Address: 702, 7th Floor, A Wing, Prism Tower,
Mindspace, Off Link Road, Goregaon (W),
Mumbai 400062

Email Id: Puneet.bhatia@sapphirefoods.in



Licensor



Licensee

"ANNEXURE – D"
Licensors' "No Objection"

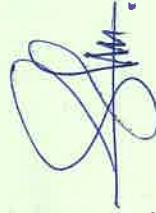
TO WHOM SO IT MAY CONCERN

This is to confirm that, We have permitted Sapphire Foods India Ltd. to operate its business of quick service restaurant in the name and style of KFC from the commercial premises owned by the undersigned, admeasuring 2250 Sq. Ft. (Carpet area) on the Ground Floor, at Commercial Premises situated at CTS No.14536/3 in the building named 'Motiwala Avenue' Opp. Dhoodh Dairy, Beside Barista, Amarpreet Signal, Jalna Road, Aurangabad-431001 ("Said Premises"), and we have No Objection regarding Sapphire Foods India Ltd. applying for required licenses/permissions/registrations with the concern authorities to run and operate the above said restaurant at and from the Said Premises. It is further to provide our "No Objection" for obtaining telephone and/or internet connection, ADSL connectivity with static IP, enhancement of power load as may be required for Licensee's Business at the Said Premises.

Date - _____
Place- _____



For _____
Owner



Licensor



Licensee